



KIOWA TRIBE

P.O. Box 369 • Carnegie, Oklahoma • 73015
Phone: (580) 654-6338 • Fax: (580) 654-1788
OFFICE OF THE LEGISLATURE

KIOWA TRIBE LEGISLATIVE ORDER KLO-CY-2025-026

SUBJECT: To Override A Veto Issued by the Chairman of a Resolution/Bill KL-CY-2025-012 A Resolution of The Kiowa Tribe Implementing a 3% Cost of Living Adjustment (COLA) Raise for All Employees of The Executive, Legislative, Judicial, and Kiowa Indian Council Branches.

WHEREAS, Article VI, Section 6(c) and (d) of the Tribe's Constitution grants the Legislature the authority to override a Chairman's veto of a Bill or budget by passing a Legislative Order; and,

WHEREAS, On August 09, 2025, the Legislature passed a Bill entitled, "A Resolution of The Kiowa Tribe Implementing A 3% Cost of Living Adjustment (COLA) Raise for All Employees of The Executive, Legislative, Judicial, and Kiowa Indian Council Branches". (Resolution KL-CY-2025-012); and,

WHEREAS, On August 20th, 2025, the Chairman of the Tribe vetoed Resolution KL-CY-2025-012 citing, "reasons for veto by Chairman (see attached statement)"; and,

NOW THEREFORE IT BE RESOLVED, that the Legislature hereby overrides the Chairman's veto of Resolution KL-CY-2025-012 A Resolution of The Kiowa Tribe Implementing A 3% Cost Of Living Adjustment (COLA) Raise for All Employees of The Executive, Legislative, Judicial, and Kiowa Indian Council Branches.

CERTIFICATION

The foregoing Legislative Override Order KLO-CY-2025-026 was duly voted and approved upon by the Legislature on September 13, 2025, at a Legislative Regular Session CI-(101) with a vote of (7) in favor and (0) opposed, (0) abstaining, and (0) absent, pursuant to the authority vested in the Legislature by the Constitution of the Kiowa Tribe.

Michael Primus
Speaker of the Legislature

KIOWA TRIBE RESOLUTION NUMBER KY-CY-2025-012

STATEMENT BY THE LEGISLATURE REGARDING VETO OVERRIDE

The Chairman's veto was limited only to the inclusion of the following "WHEREAS" provision in the resolution:

WHEREAS, the Legislature has the authority to adjust the Cost of Living Adjustment (COLA) from 1% to 3%. This decision will be made through Legislative Order, requiring a majority vote of the Legislature; and,

The Chairman, citing the Constitutional definition of Legislative Order, stated that he "didn't think a Legislative Order" was the "appropriate vehicle" to change the Cost of Living. From the outset, it must be noted that a "WHEREAS" clause is not law, but merely an explanation for the Legislature's action. The operative part of a resolution is the provisions contained in a "BE IT RESOLVED" clause. Here, the resolution only includes one "BE IT RESOLVED" clause:

NOW THEREFORE BE IT RESOLVED, that the Kiowa Tribe Legislature authorizes and approves a 3% Cost of Living Adjustment (COLA) raise for all employees within the Executive, Legislative, Judicial, and Kiowa Indian Council. All (COLA) raises shall be in an approved budget.

As detailed in the Resolution, this increase in (COLA) is not being approved through a Legislative Order but will be done in an approved budget. The impetus for the resolution was a concern that raises would be done in a subjective manner and the Legislature wished to ensure they were done equitably instead. As result, the Resolution was meant to inform the Executive Branch (and the public) of the Legislature's intent to include such an equitable increase in (COLA) in the budgetary process.

LEGISLATIVE OVERRIDE ORDER - KLO-CY-2025-026

LEGISLATORS	YES	NO	ABSTAIN	ABSENT
Kyle Ataddlety District 1	X			
Michael Primus District 2	X			
Timothy Satepauhoodle District 3	X			
Cole DeLaune District 4	X			
Tiya Rosario District 5	X			
Ben Wolf District 6	X			
Warren Queton District 7	X			